

****SEE ALSO**** provision of January 30, 2025

[doc. web n. 10110018]

Provision of December 19, 2024

Register of provisions

n. 823 of December 19, 2024

****THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA****

IN THE meeting today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, deputy secretary general;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter “Regulation”);

HAVING REGARD TO the Code on the protection of personal data
(legislative decree June 30, 2003, n. 196), as
amended by legislative decree August 10, 2018, n. 101, containing
provisions for the adaptation of the national
legal system to the aforementioned Regulation (hereinafter
“Code”);

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the
secretary general pursuant to Article 15 of the
Regulation of the Guarantor n. 1/2000;

REPORTING Prof. Pasquale Stanzione;

****PREMISE****

1. The investigative activity carried out by the Authority and its outcomes

On July 18, 2023, a complaint was received by the Authority from Mr. XX, who reported having
received numerous unwanted emails at his email address from Altroconsumo Edizioni S.r.l.
(hereinafter “Altroconsumo” and “Company”). In particular, according to what was indicated at the
bottom of the communications received, the promotional campaign would appear to have been
commissioned by Altroconsumo and managed by third parties.

The complained communications would have continued despite various attempts to unsubscribe from
the emails and also following the assurances provided by Altroconsumo on May 8, 2020, in response
to the request for opposition to further processing, as well as for the deletion of personal data, made by
the interested party on March 16, 2020. In the response of May 8, 2020, Altroconsumo stated that it
was not the data controller in relation to the complained communication and that it had “requested the
company that carried out the processing to delete the [...] data” in question.

On October 18, 2023, as the receipt of unwanted emails on behalf of the Company continued, the
complainant supplemented the original complaint, attaching copies of further communications
received, and on March 28, 2024, he produced the exchanges that took place with some of the parties
that would have managed the promotional campaign in order to have a more complete understanding
of the origin of his data.

The Authority, in the context of the preliminary investigation aimed at resolving the aforementioned
complaint, made a request for information to Altroconsumo, pursuant to Article 157 of the Code (ref.

prot. n. 0044296/24 of April 9, 2024). In the response of May 9, 2024, the Company reiterated that it did not hold the role of data controller in relation to the promotional campaign carried out via email. This is because, for the conduct of this promotional activity, Altroconsumo, through its partners - data processors - uses a "network of affiliates offered by some online advertising companies." Specifically, it was clarified that "the email marketing activity carried out through the affiliate network consists of promoting the products of Altroconsumo Edizioni (for example: subscription to its magazines, practical guides, buying groups, and so on) through the sending of advertising emails to lists of interested parties whose ownership rests with third-party companies [...] [defined as Affiliates] with which only the partners have a service contract."

The Company then represented that it commissions the promotional campaign to its partners, data processors, providing them with "all the commercial and product information" necessary for its realization; these partners undertake to package the commercial information provided by Altroconsumo into a final graphic product that is sent to the Affiliates "so that they take care of the actual dissemination via email to the lists of interested parties selected and processed by them." In conclusion, in email marketing, the partners would perform an intermediation activity between Altroconsumo and the Affiliates; the latter, entirely autonomously, establish "the methods of collecting personal data, [...] the methods and frequency of sending [the communications], without these aspects being shared with Altroconsumo Edizioni or with the Partners. [...] The ownership of personal data arises in favor of Altroconsumo Edizioni only when, in a spirit of mere collaboration and assistance, it is involved in a request to exercise rights [...]"

The Company also represented that it had signed with its partners, data processors, "quality protocols in relation [...] to the email marketing activity." In particular, the protocols signed with partner companies XX and XX were produced.

"Such quality protocols – stated the

Company - requires Partners to select only Affiliates who can guarantee reliability and quality of service [...], monitor [their] operations [...] and provide prompt assistance to Altroconsumo [...] in the event that an interested party contacts them for the possible exercise of rights [...]" In this regard, the Company clarified, firstly, that the promotional emails sent to interested parties contain "not only the correct information from a commercial perspective but also all references to the Affiliate responsible for the processing of personal data, the contacts to exercise rights [...] as well as to unsubscribe from the mailing"; moreover, it is the partners who communicate directly with the Affiliates, based on the aforementioned contractual relationship with them, and request "the cessation of the processing of personal data and [its] deletion".

Regarding the measures adopted to ensure the right of opposition of the interested party, the Company represented that it received the complainant's request during the pandemic, specifically on March 16, 2020, and forwarded it to the partner on March 18, so that the latter could notify the Affiliates for its complete fulfillment. On May 8, 2020, Altroconsumo responded to the complainant stating that it was not involved in the processing of data for commercial purposes as it was not the data controller.

In support of its response to the Authority, Altroconsumo attached documentation produced by the parties involved in the promotional campaign that would prove the consent to communication to third parties for advertising purposes granted by the complainant. From the analysis of the factual and documentary elements provided by the Company in its response of May 9, 2024, the following critical issues were identified.

1.1. The role of the parties in the processing and accountability of the data controller

Having Altroconsumo concretely determined the purposes (promotional) and methods of processing, outlined in "quality protocols," which the partners (in the role of data processors) were to follow to carry out the advertising campaign, the Company itself has been qualified, within the scope of this investigation, as the data controller (see Articles 4, point 7, and 24 of the Regulation). The Affiliates, on the other hand, can be classified as "autonomous controllers" since the management of the database - containing the personal data later used for the promotional activity of the Company/client - along with the collection of data and their storage, constitutes processing operations prior to the commercial

campaign of Altroconsumo and, therefore, not directly related to its execution.

In this context, the Company's claim of being unrelated to the contested processing does not appear to be justifiable; this is not only because the communications received by the complainant were made in the name and interest of Altroconsumo (which, in fact, determined the purposes - promotional - and the very methods of processing) but also due to the operations that, through the partners, are carried out by the Company on the lists to be contacted. In fact, from the analysis of the "prospect recruitment protocol" signed with partner XX in May 2020, it emerged that the latter, as the data processor, is formally tasked by Altroconsumo to select the Affiliates and to monitor their operations, including the verification "that the email addresses of the interested parties [recipients of the advertising campaign] comply with [...] criteria of seriousness and reliability"; furthermore, the partner is required to forward to the Affiliates a list of personal data, provided by Altroconsumo, to be excluded from promotional contacts; a list that is subject to deduplication by the Affiliates themselves. Finally, it is provided that Altroconsumo "at least once a year" conducts checks with the processor XX "on the proof of consents for processing for marketing purposes by third parties".

In light of the above, a lack of adequate control over the lists used for Altroconsumo's advertising initiative has emerged, given that the verification activities regarding the reliability of the Affiliates and the proof of consents granted by the interested parties are entirely entrusted to the partners while the Company retains only the view of the audits on an annual basis. In fact, no specific controls have emerged from the processor (partner) regarding the operations of the Affiliates and the related compliance with the information and consent requirements; such negligence may qualify the processing in question as a violation of the principles of lawfulness, fairness, and transparency, as per Article 5, paragraph 1, letter a) of the Regulation.

Therefore, considering the qualification of controller attributed to Altroconsumo, the lack of adoption by the Company of adequate technical and organizational measures aimed at demonstrating compliance of the processing with the data protection regulations is noted, constituting a violation of Articles 5, paragraph 2, and 24 of the Regulation.

1.2. Exercise of rights

The request made by the complainant on March 16, 2020, was responded to by the Company on May 8, 2020, thus two months after its receipt. This response, therefore, was provided in violation of the thirty-day deadline set by Article 12, paragraph 3, of the Regulation, with the mere notification, albeit timely, of the request to the data processor (on March 18, 2020) not being relevant for its fulfillment. Furthermore, an inadequate management of the requests for the exercise of rights of the interested parties has emerged, to the extent that it nullified the opposition expressed by the complainant who, in fact, continued to receive unwanted emails for several years.

Regarding this matter, it should be noted in general that "the opposition to the processing presented by the data subject would be rendered ineffective [as indeed happened for the complainant] in the absence of suitable procedures implemented by the data controller to keep track of such opposition (even in the case of outsourcing part of the processing to third parties). [...] It is [...] the responsibility of the data controller to ensure that individuals who have revoked their consent, or have expressed a specific denial, are no longer subject to promotional activities on their behalf" (see provision no. 143 of July 9, 2020, web doc no. 9435753; and provision no. 413 of November 25, 2021, web doc no. 9737185, at www.gpdp.it).

Altroconsumo reiterated that it does not hold the role of data controller in email marketing activities and, therefore, is not obliged to respond to requests made by the data subjects. The incorrect qualification of being a client without a role that Altroconsumo attributed to itself during the investigation, along with the failure to adopt appropriate technical and organizational measures to accommodate the requests of the data subjects, including their opposition to the processing, has thus resulted in the violation of Articles 5, paragraph 2, 12, paragraphs 1, 2, and 3, 21, paragraph 2, 24, and 25 of the Regulation.

1.3. Sending promotional communications in the absence of consent

The receipt of promotional communications, also following the complainant's opposition, constituted a processing of personal data in the absence of consent, thus integrating the violation of Article 6, paragraph 1, letter a) of the Regulation, as well as Article 130, paragraphs 1 and 2, of the Code.

2. Notification of the alleged violations pursuant to Article 166, paragraph 5, of the Code.

Based on the above, the Authority deemed it necessary, on May 29, 2024, to contest to the Company the alleged violation of the following provisions:

- Article 5, paragraph 1, letter a);
- Article 5, paragraph 2;
- Article 6, paragraph 1, letter a);
- Article 12, paragraphs 1, 2, and 3;
- Article 21, paragraph 2;
- Article 24;
- Article 25;
- and Article 130, paragraphs 1 and 2, of the Code.

With the same note, which is fully referenced here, the Authority therefore proceeded to communicate the initiation of the procedure for the possible adoption of the measures referred to in Article 58, paragraph 2, of the Regulation and for the possible application of the monetary sanctions referred to in Article 83, paragraphs 4 and 5, of the Regulation (note ref. prot. no. 0065219/24 of May 29, 2024).

3. The defense of Altroconsumo

After a 15-day extension granted on June 26, 2024, to Altroconsumo, which requested it (ref. prot. no. 0078164/24), as provided for by Article 166, paragraph 6, and Articles 12 and 13 of Regulation no. 1/2019 of the Guarantor (available for consultation on the website www.gdpd.it, web doc no. 9107633), on July 12, 2024, the Company submitted a defensive memorandum in which - recalling in full the content of the response of May 9, 2024, to the Authority's request for information regarding "the methods by which email marketing campaigns aimed at acquiring new subscribers are managed," as well as the qualification of roles in "the relationships between the various parties involved" - it highlighted "some factual elements that appear relevant for the [...] presentation of the defensive considerations" and requested, for this reason, the archiving of the procedure initiated against it, or, in the alternative, the resolution of the same "without the imposition of any monetary sanction."

3.1. With reference to point 1.1. of this provision (The role of the parties in the processing and accountability of the data controller), the Company preliminarily reiterated that the choice of Affiliates is solely at the discretion of the partner; "no contractual relationship is therefore established between AC Edizioni and the Affiliates through [the] Partner, who acts by establishing an independent contractual relationship with the Affiliates without receiving any authorization or approval, either prior or subsequent. [...] AC Edizioni merely requests the Partners to use, for the execution of the assignment received, Affiliates that meet certain technical, qualitative, and compliance requirements; and this is to protect the image and commercial reputation of AC Edizioni, considering that the promotional campaigns carried out by the Affiliates concern products and services of AC Edizioni and therefore expose the image and distinctive signs of the company to a risk of possible damage."

Altroconsumo also specified that the promotional campaigns contested by the complainant refer to the period "from October 2023 to March 2024"; "this is therefore a period that occurs well after the request of March 16, 2020, with which the Complainant exercised their right under Article 21 (2) of the GDPR against AC Edizioni and which was responded to by the latter on May 8, 2020." "[...] the Affiliates involved in the provision of the advertising campaigns during the contested period" - stated the Company - "appear to be XX (the latter seems to have operated through its partners XX and XX) and XX."

These Affiliates - the Company continued - "claim to have sent the messages to the complainant's email address based on independent consents (to receive promotional communications concerning products and services of third parties) granted after the opposition" expressed by the same "in the distant 2020." This - the Company highlighted - would emerge from the discussions that the

the claimant himself would have engaged with the partner XX who, in his response, would have indicated XX as the “data controller” to whom the data subject would have given his consent for commercial purposes. With reference, instead, to XX, the latter “claims [...] to have obtained the consent of the Claimant on the website XX on 02/07/2022 at 13:28.” Therefore, according to the Company, the data subject acted directly and “independently” towards the Affiliates; so much so that “the Complaint is also directed against such subjects in their capacity as data controllers [...] and not as data processors on behalf of AC Edizioni,” which, in “all promotional messages sent by the Affiliates [...] has been correctly identified as merely the client.”

According to the Company, Altroconsumo cannot be considered the data controller as it does not have access to the data used for promoting its products and services and is only responsible for managing, through its partners, the graphic aspect of the commercial message. The marketing campaign is “managed entirely independently by a third-party professional on its own database” (Affiliates). “Altroconsumo – the Company continued – has no control over the methods of data collection by the Affiliates” who pursue “their own commercial purposes [...] independently of the advertiser.” “The Affiliates – the Company further specified – independently decide to collect data for their own autonomous commercial purposes, and not at the request or direction of the advertiser. The data is not collected at the request of AC Edizioni nor is it collected for the purpose of conveying marketing campaigns concerning the products and services of AC Edizioni. [...] The Affiliates independently determine which data to collect, the websites, and other methods of collection [...]. In conclusion, the lack of determination of the purposes and means of processing by AC Edizioni makes it impossible to qualify the latter as the data controller pursuant to Article 4(1) (n.7).”

Furthermore, in the opinion of the Company, “the literal content [of the received emails] [allows to] exclude any possibility of legitimate reliance on an alleged role of AC Edizioni as data controller” since such qualification clearly appears to be attributed to third parties (Affiliates), while the Company is indicated as the client of the promotional message. “[...] In this context – stated Altroconsumo – the principle cannot be shared that the client of an email marketing campaign should be considered as the data controller even though the advertising message clearly identifies the actual data controller and therefore no legitimate reliance could have been generated in the recipient of the communication regarding the role of the client. [...] Precisely in order to be as transparent as possible towards users and to avoid misunderstandings regarding the roles, AC Edizioni has required the Partners to indicate the client of the advertising campaign in the promotional messages, while ensuring the correct and clear identification of the data controller in the Affiliate. However, all this cannot transform AC Edizioni into a data controller, with the paradoxical result that if AC Edizioni had decided to be less transparent, omitting to qualify itself as the client, then it would not have been qualified as a data controller for failing to generate a legitimate reliance in the recipient of the communication.”

Finally, the Company excluded any power of intervention over the lists formed by the Affiliates and clarified that the “deduplication” activity, provided for in the “prospect recruitment protocol,” does not involve operations of cross-referencing databases and accessing them, but consists solely of forwarding to the aforementioned Affiliates the requests for exercising rights addressed to Altroconsumo for their complete fulfillment. This is “in a perspective of merely facilitating dialogue between the consumer and the Affiliates for a more effective protection of the former.” The “clause of the [aforementioned] protocol is poorly formulated not reflecting the actual relationships between the parties. [...] Similarly, [the fact that] AC Edizioni requires that the Partner only uses Affiliates capable of meeting certain quality requirements does not place AC Edizioni in a position to determine the purposes and means of processing”; in particular, the request to use “reliable” email addresses constitutes, according to the Company, a “technical and qualitative requirement that must be met by the Affiliates and has nothing to do with the personal data of the data subjects. Even in this case [...] there is no evidence of any power of intervention over the data by AC Edizioni.”

3.2. With reference to point 1.2. of this provision (Exercise of rights), the Company argued that it cannot be held responsible for the violations identified in the notice of contestation as it did not hold the role of data controller in the processing in question, as already represented in the previous paragraph.

Therefore, according to it, it would not have been obliged to “respond within a month to the opposition of the data subject pursuant to Article 21(2)” but, at the same time, it stated that it had “adopted a proactive approach to facilitate the exercise of rights,” involving the partner so that the latter would turn to the Affiliates for the satisfaction of the requests received. This occurred during the pandemic period when “all deadlines, both ordinary and peremptory, were suspended from February 23, 2020, to April 15, 2020.”

****of administrative proceedings (see art. 103, paragraph 1, of the decree-law of March 17, 2020, no. 18, converted with amendments by law of April 24, 2020, no. 27).****

Nevertheless, Altroconsumo “took action without delay to request, through the Partner, that the data controllers comply with the request of the Claimant within the legal terms”; in fact, “following the receipt of the Claimant’s request on March 16, 2020, the notification to the Partner was made on March 18, 2020, with a resulting time frame of just 48 hours during the full COVID pandemic.”

In referencing a recent decision by the Authority (decision of August 3, 2023, no. 352, at www.gpdp.it, web doc no. 9935519), Altroconsumo, noting similarities to the case at hand, emphasized that it acted, despite not being the data controller, “diligently to report the request of the interested party to the subjects who were in the position and had the obligation to follow up”; which should have led to an assessment of archiving its position.

Furthermore, the Company represented that the unwanted communications complained of by the claimant “between the end of 2023 and the beginning of 2024 appear [...] as an isolated case that finds its explanation in the specific relationships between the latter and some Affiliates and not as a physiological result of a cumbersome system that would not be able to ensure the respect of the rights of the interested parties,” as noted by the Authority in the notice of violation. In this regard, the Company specified that the aforementioned emails were sent to the claimant based on his explicit consent “to receive marketing communications related to third-party products and services” granted to the Affiliates “on websites attributable to the latter following the request for opposition submitted to AC Edizioni in March 2020” (as in the case of the consent granted to Affiliates XX. and XX, respectively on July 10, 2023, and July 2, 2022).

****3.3. With reference to point 1.3. of this decision (Sending promotional communications in the absence of consent), the Company, referring to the arguments made in the previous paragraph, contested the reconstruction made by the Authority regarding the receipt of unwanted emails following the denial opposed by the claimant and, therefore, in the absence of express authorization.****

Altroconsumo represented that the cited promotional emails were sent “based on new consents collected after 2020, that is, after the request submitted to AC Edizioni,” as already communicated to the interested party by partner XX in the response of February 9, 2024, of which evidence was provided in the complaint. Therefore, according to the Company, the framework outlined by the Authority appears to contradict what was instead asserted by the data controllers (Affiliates) whose conduct would have required further investigative depth.

****4. Legal evaluations of the Authority****

With reference to the factual profiles highlighted above, also based on the statements of the Company, for which the declarant is responsible pursuant to art. 168 of the Code, the following legal evaluations are formulated.

****4.1. On the ownership of the processing – accountability****

The Company described the manner of conducting promotional campaigns via email, stating that it relies, for their implementation, on its partners, appointed as data processors, with whom it has signed “quality protocols,” attaching a copy thereof. These partners, based on the aforementioned protocols, commit to selecting in the market - according to criteria of “reliability, professionalism, and compliance with the GDPR” - third parties (Affiliates) holding databases containing personal data of interested parties who, upon registration on websites or in prize competitions, would have granted consent for communication to third parties for marketing purposes.

Therefore, according to the Company, the data controller is the subject that holds the personal data, and thus, this role is attributable solely to the Affiliates who would have carried out the actual collection of the data itself. It follows that Altroconsumo, not having "knowledge or visibility of the personal data of email marketing, which remain exclusively available to the Affiliates," cannot be qualified as the data controller except with reference to the requests for the exercise of rights made against it by the interested parties.

In this regard, it is noted that, as already stated by the Guarantor in similar cases, "the client of a promotional campaign, regardless of the actual apprehension of the data, must be considered the data controller having concretely determined the decisions regarding the purposes and methods of the processing itself" (see decision no. 437 of October 26, 2017, web doc no. 7320903; decision no. 412 of November 25, 2021, web doc no. 9736961; cited decision no. 413 of November 25, 2021, web doc no. 9737185; at www.gdpd.it). The subject that operates on behalf of the controller, executing its instructions even with a certain degree of autonomy without, however, being able to exercise any discretion regarding the choice of the purposes of the processing, is instead to be considered "responsible."

In the case at hand, based on the elements provided, Altroconsumo is to be considered the controller having, in fact, established the reason for which the processing was carried out (the conveyance of advertising messages for its products and services), and having chosen the criteria for the promotional activity, formalized in "quality protocols," as well as the content of the commercial communication, then packaged by the partners in a graphic format, thereby defining the essential means of the processing itself (see Articles 4, paragraph 7, and 24 of the Regulation). The partners, who would have acted by delegation on behalf of Altroconsumo, can be classified as data processors; while the role played by the Affiliates can be attributed to that of "independent data controller" concerning the processing operations (data collection and storage) carried out independently and in a phase prior to and entirely independent of the promotional campaign planned by the Company. For this reason, the Affiliates cannot be held responsible for the processing in question carried out in the interest of Altroconsumo, to which, therefore, as the data controller, the violations of the regulations on personal data protection are directly attributable. Furthermore, attention must be paid to the effects produced on the data subjects by the receipt of promotional communications. In the specific case, based on what was represented in the complaint and the evidence provided in support of it, emails containing the promotion of services and products of Altroconsumo were sent, indicated at the bottom of the communications as the client of the commercial initiative. In fact, in the advertising messages in question, the role played by Altroconsumo regarding the third parties to whom the Company itself, through the partners, would have entrusted the task, is clear. Even if Altroconsumo had wanted to make the advertising message less "transparent" by omitting its role as client (as stated in the defense memorandum), the content of the communication was unequivocally associated with a promotional initiative of the Company since the products and services of the same were advertised.

Therefore, such a configuration of the messages is

evidently capable of generating in the recipient the belief that they have been contacted by Altroconsumo Edizioni S.r.l. and, for such reasons, the claimant initially turned to the Company, writing to the address XX, based on such legitimate reliance, thus excluding any potential attribution of responsibility to other parties. In this regard, it should be recalled what was clarified by the Guarantor with provision no. 230 of June 15, 2011 (available at www.gpdp.it, doc. web no. 1821257) specifically regarding the fact that “[...] promotional contacts are made in the name, however on behalf and in the interest of the proposing company; with the effect that a legitimate reliance is generated in the data subjects, since they perceive themselves as recipients of advertising initiatives conducted directly by the company on whose behalf the proposal for the sale of products or services is made.” Moreover, it is the same Altroconsumo that states in the defense memorandum that “the promotional campaigns carried out by the Affiliates concern products and services of AC Edizioni and therefore expose the image and distinctive signs of the company to a risk of possible damages.” Furthermore, if the realization of a promotional campaign can (hopefully) bring benefits in terms of increased sales, it can also lead, if not properly executed, to a violation of individuals' rights as well as damage to that corporate image which was, instead, intended to be promoted. Therefore, the client of a promotional campaign should have an interest in exercising those selection and oversight activities typical of those operating as data controllers and which constitute an obligation for them (as provided by Article 28 of the Regulation) but at the same time also an important opportunity to verify the correct execution of the assignment.

In light of the above, considering the role of data controller held by Altroconsumo, it is believed that the failure to adopt adequate technical and organizational measures regulated by Article 24 of the Regulation has emerged on the part of the Company. In particular, it does not appear that Altroconsumo has exercised a precise and constant control over the personal data used, in its name and on its behalf, for the promotion of its products. The selection of the Affiliates, the verification of the lists and the proof of the consents given by the data subjects appear to be activities entirely delegated to the partner. Such verifications, limited to the proof of the asserted consents, do not seem to also concern the information provided to the data subjects, so much so that such non-compliance is capable of undermining the understanding of the processing actually carried out and the correspondence with the consents requested in order to fully and coherently implement the principle of transparency which is a fundamental criterion of legitimacy for promotional activities (Article 5, paragraph 1, letter a

of the Regulation). In this regard, the Guarantor has consistently emphasized that “It is the responsibility of the data controller to make use of processors who offer sufficient guarantees but this is not enough to reduce the degree of responsibility in overseeing that the controller must constantly exercise during the processing activities. And this is even more necessary when the activity involves the involvement of third parties, due to the potential evasion of the guarantee norms through the contractual allocation of responsibilities” (see cited provision no. 413 of November 25, 2021). Altroconsumo, by its own admission, limits itself to reviewing “at least once a year” the audits prepared by the partner on the data acquired from the Affiliates without verifying that all phases of the processing of personal data occur in adherence to the instructions given (*culpa in vigilando*). Additionally, it is represented that the provision of indemnity clauses contained in the protocol signed with partner XX is of no relevance concerning the guarantees to be provided to the interested party in the context of the processing of their personal data but is only valid with regard to the contractual liability of the parties (see, on this point, cited provision no. 413 of November 25, 2021). Therefore, the Company has not demonstrated that it has conducted checks on the processed data, nor quantified the records on which the partner would have carried out the checks, nor indicated a sampling percentage; moreover, the annual verification by Altroconsumo reserved for the audits of the data processor does not appear sufficient to ensure an adequate level of protection, reducing the aforementioned control to a mere formality. In other words, the processing of personal data carried out by the Company has proven to be completely lacking in safeguards and controls concerning the entire commercial and managerial chain (see, on this point, also provision no. 204 of April 11, 2024, web doc no. 10008019, at www.gpdp.it). What has been described thus far highlights, as already mentioned, a framework of inadequate control by Altroconsumo in the processing aimed at carrying out the promotional campaign, resulting in an inability to comply with the obligation to demonstrate compliance with the rules on personal data protection (accountability of the data controller). Therefore, it is deemed appropriate to confirm the violation of Articles 5, paragraph 2, and 24 of the Regulation.

4.2. On the exercise of rights

Regarding point 3.2. of this provision and the issue of the contested lateness of the data controller's response within the thirty-day period provided for by Article 12, paragraph 3, of the Regulation, it is considered that the exception raised by the Company can be taken into account. It is noted that Altroconsumo's response did not appear adequate to satisfy the requests of the interested party regarding the processing of their personal data: in response to the request for access to the data and to know “what the basis of the processing is” (see request of March 16, 2020), Altroconsumo, in the aforementioned communication of May 8, 2020, limited itself to declaring its estrangement from the complained promotional messages, stating that it was not the data controller and attributing the responsibility for the conduct to a vaguely specified company that would have taken care of the deletion of the same data (cited “We have, however, requested the company that carried out the processing to delete your personal data” – response of May 8, 2020). It would have been up to Altroconsumo, as the data controller, to respond to the requests of the interested parties, demonstrating that it exercises full control over the processing carried out in its interest. In this regard, Altroconsumo's mere assurances to communicate the deletion of the data to the third party that originally collected them, as represented in the response to the complainant of May 8, 2020, do not exhaust the obligations of the data controller to provide the interested parties with all the information regarding the processing of their data, from the identification of the company that would have obtained

consent for marketing to the subjects to whom the data were or would be communicated, as well as the relevant legal bases for lawfulness (providing documented evidence thereof), in addition to ensuring that appropriate measures have been taken to prevent further future processing (for example, by including the name in a blacklist). Furthermore, based on the provision contained in Article 19 of the Regulation, in addition to the obligation to notify third parties who are recipients of the personal data of the deletion request made by the interested party, it is the responsibility of the data controller to communicate to the latter "such recipients if [the latter] requests it." In this specific case, however, the Company deemed it appropriate to direct the interested party's request to the "third parties who were in the position and had the obligation to follow up" (see Altroconsumo's defense memorandum of July 12, 2024, p. 19, point 81). Therefore, in Altroconsumo's view, the informational obligations towards the interested parties would fall on the aforementioned third parties to whom, in a completely exceptional manner and out of mere diligence, the Company would have directed the related requests. Finally, while fully referring to the arguments expressed in the previous point (4.1.) regarding the role of data controller held by Altroconsumo, the reference to the Garante's provision of August 3, 2023, no. 352, cannot be considered pertinent, as the case examined therein involves a different context of processing related to multiple clients, which is not replicable in the case at hand. Regarding, instead, the alleged lack of investigative checks concerning the Affiliates, raised by the Company in its defense memorandum, it should first be noted that the Authority, in exercising the tasks and powers conferred by the regulations on personal data processing, shapes its action according to the principles of reasonableness, cost-effectiveness, adequacy, and impartiality; taking into account "the nature and severity of the violations [...] the harm they may cause [...] as well as the available resources" (pursuant to Article 3 of Regulation no. 1/2019 cited). Therefore, it falls within the exercise of discretionary power to decide to extend the present investigation to the numerous subjects (Affiliates) involved, with the understanding that the Authority is not required to account for this activity in the present provision. In any case, any autonomous responsibility of the Affiliates, if established in relation to the role played in the processing of personal data, would not relieve the Company from the charges contested in the ongoing proceedings, which, for the reasons outlined above, must be confirmed.

Therefore, it is believed that the violation of Articles 5, paragraph 2, 12, paragraphs 1 and 2, 21, paragraph 2, 24, and 25 of the Regulation is established.

4.3. On consent to receive promotional communications

Regarding the aspect related to the absence of a legal basis of consent for the sending of unwanted communications referred to in point 1.3. of this provision, it is preliminarily noted that the conduct complained of in the complaint concerned not only the emails sent after the complainant's opposition request of March 16, 2020, but also the sends that occurred prior to the aforementioned request. From the analysis of the documentation on file (see emails attached to the complaint of July 18, 2023, and the supplements of October 18, 2023, and March 28, 2024), it emerged, in fact, that the interested party received two unwanted promotional communications commissioned by Altroconsumo on April 8, 2019, and March 9, 2020 (as represented in the complaint), to which, even following unsuccessful attempts to unsubscribe, others followed in the period from July 2023 (and not October 2023, as claimed by the Company) until March 2024. Therefore, the interested party was the recipient of unwanted emails as early as 2019, continuing to receive many others five years after the first communication and four years after the opposition.

It should also be noted that the response provided to the Authority only concerned the consents allegedly given by the interested party after the opposition of March 16, 2020, which would justify the further sends of unwanted communications. Nothing has been clarified or produced regarding the emails sent prior to the aforementioned opposition request, particularly on the dates of April 8, 2019, and March 9, 2020; however, in relation to these, the Company limited itself to invoking a generic consent to the processing of personal data that the interested party would have provided "within a website of the indirect marketing provider" (see email of May 12, 2020, sent by Altroconsumo to the complainant, attached to the response to the Authority of May 9, 2024), without detailing the acquisition (date and time of registration on the website and identifying elements of the data controller; IP address; provided information; formulas of the consents requested and flags released in

correspondence with them). It follows that, in the absence of documentation proving the acquisition of the interested party's consent to the processing of their personal data for marketing purposes, such communications were not supported by the necessary legal basis that would authorize their sending. This duly clarified, taking into account a broader time frame than that considered by the Company, from April 2019 to March 2024, promotional emails were sent on behalf of Altroconsumo by various Affiliates involved in the delivery of promotional campaigns.

With reference to the emails considered by the Company in the current proceedings (i.e., those received in the period from October 2023 to March 2024), Altroconsumo stated that the sending of such messages would be justified by the existence of independent consents "(for the receipt of promotional communications concerning third-party products and services) granted after the opposition," of which it only provided evidence following the intervention of the Authority.

From a thorough analysis of the documentation produced by Altroconsumo, several critical issues were identified, as detailed below, regarding the alleged consents acquired, which undermine their validity.

4.3.1. Consents acquired by Affiliate XX

With reference to Affiliate XX, from the documentation on file, it emerged that the complainant would have provided personal data during participation in the prize competition "Win the iPhone 14 Pro Max today!" (as per the link <http://...>) and, in this circumstance, would have authorized the processing for marketing purposes and for communication to third parties for their promotional activities.

Accessing the link <http://...>, indicated in the documentation produced to Altroconsumo by XX, refers to the online participation form for the aforementioned competition; at the bottom of this online form, the "final date for participation" in the competition procedure is indicated (December 31, 2024) and not the date on which this prize competition was announced. This does not allow for verification of whether the mentioned website and the texts of the information and consents produced in the response were similar to those viewed by the interested party at the time of the online collection of their personal data; nor was it possible for the Office to view a version of the website prior to or adjacent to the date of the alleged acquisition of consent (July 10, 2023) since on the portal web.archive.org - which preserves snapshots of the home pages of websites and their structure even from earlier times - the only snapshot related to the described competition was found on February 9, 2024, and coincides with the version produced by the Company in the response.

In the absence of more precise and detailed documentation, from a verification of the online participation form for the prize competition, in the version provided by the Company, it is observed that following the

****Data Provision by Data Subjects****

Various authorizations are required in the formulations that follow:

****Consent No. 1****

****Consent No. 2****

****Consent No. 3****

In this regard, it should be noted that the consents illustrated above, although optional, do not appear to be supported by the requirement of specificity, as provided for by Article 4, paragraph 11, of the Regulation. These authorizations, in the formulations proposed in the aforementioned online form, aim to combine, in a single solution, the distinct marketing purposes of the data controller and communication to third parties (so-called "sponsors") for their promotional activities, which instead require two specific informed consents from the data subjects (particularly concerning "Consent No. 1" and "Consent No. 2" mentioned in the figure above). The "sponsors" are listed on a dedicated page accessible via a specific link; for each "sponsor," the privacy notice is provided in which they are indicated as data controllers. Therefore, in the absence of an express qualification of the role of the "Sponsors" in relation to XX, it can be assumed that the processing related to the described prize competition involves a transfer of data from a data controller-organizer of the competition procedure (XX) to another ("sponsor").

That said, with reference to "Consent No. 1," the pursuit of promotional purposes emerges both from

the "organizer" of the competition (which should refer to the Affiliate XX) and from the "Sponsors" to whom the collected data may be forwarded; "Consent No. 2," on the other hand, refers to the "commercial purposes highlighted in Article 2 of the Privacy Policy," such as "direct marketing" of the competition holder as well as communication to third parties (sponsors) so that "they can also conduct individual direct marketing [...] through the following channels: e-mail, push notifications, mail, telephone, and text messages/SMS [...]" subjecting such processing both to the consent of the data subjects and, erroneously, to the legal basis of the contract (as per Article 6, paragraph 1, letter b of the Regulation).

Regarding the communication of data to third parties for marketing purposes, the Guarantor, in the "Guidelines on Promotional Activities and Anti-Spam" (provision of July 4, 2013, no. 330, web document no. 2542348), noted that "the communication or transfer to third parties of personal data for marketing purposes cannot be based on the acquisition of a single and generic consent from the data subjects for such purposes. Therefore, anyone, as a data controller, who intends to collect the personal data of data subjects also for communicating (or transferring) them to third parties for their promotional purposes must first provide them with an appropriate notice [...]. Furthermore, the data controller must obtain specific consent for the communication (and/or transfer) to third parties of personal data for promotional purposes, distinct from that requested by the same data controller to carry out promotional activities."

Also, "Consent No. 3" does not appear to be specific as it aims to communicate to third parties the data collected through the online form "for the purposes of Article 1" of the notice, which includes both the contractual purpose of participating in the competition and profiling. In fact, based on what is stated in Article 1 of the aforementioned notice, the link to which is provided at the bottom of the online form, the data acquired for the provision of the offered service (prize competition) may be retained "for the purpose of creating a personal user profile" to achieve "optimized marketing based on the interests" expressed by the data subject upon completion of the participation procedure in the prize draw. Therefore, even in this case, the will of the data subject appears significantly compromised since the "contractual" purpose (participation in the competition) is connected to the promotional and profiling purposes of the data controller and the third parties (sponsors) to whom the data will be communicated.

In light of the above, from the documentation on file, it emerges that the aforementioned consents allegedly acquired from the complainant during their participation in the described prize competition cannot be considered adequate as they are not specific, with inevitable repercussions on the legitimacy of the processing carried out by the entire chain; the data just acquired, precisely because they are not supported by an appropriate legal basis, should not have been subject to processing for commercial purposes, nor could they therefore be used for the promotional activities of Altroconsumo, in adherence to the provision contained in Article 2-decies of the Code.

****4.3.2. Consents Acquired from Affiliate XX****

With reference to Affiliate XX, it has emerged, first of all, that the documentation containing the details of the consents allegedly granted by the complainant is not suitable to certify their willingness for the processing of data for commercial purposes. This is because such documentation does not pertain to records directly extracted from the information systems of the Affiliate but consists of a mere transposition into an editable format of the data contained therein. Specifically, Altroconsumo has produced the response that XX would have provided to the complainant regarding the processing of their data.

personal data. Such documentation cannot be evaluated in terms of evidence as it does not contain the characteristics of objectivity, integrity, and immutability inherent in a "digital document," which are essential to fully attest to the expression of consent of the data subject(1).

Neither the consent request forms nor the information provided to the data subject at the time of collecting their personal data have been produced, nor has it been possible to verify whether such authorizations complied with the requirements of freedom and specificity (as per Article 4, point 11, of the Regulation), with inevitable repercussions on the legitimacy of the promotional activities of the

Company itself.

It should also be noted that the Office, based on the information reported in the aforementioned document, accessed the website <https://...> and the privacy notice, using the links provided therein. It emerged that this website, to which the data subject would have registered by providing their personal data, is not attributable to Affiliate XX, but rather to a third-party company - XX - as the data controller. Furthermore, according to the privacy notice found in the online form (accessible via the link <https://...>), the data just collected may be communicated to company XX for its own promotional purposes (see point 5.3 of the privacy policy "Communication of data to third-party companies"). There is no reference to Affiliate XX, nor to its role in the processing, nor whether this Company is the recipient of the data provided by the data subjects through the website <https://....>

In this specific case, it should be highlighted that XX, in its communication to the complainant dated April 23, 2024, declared itself the data controller, providing information on the consent allegedly obtained and thereby demonstrating that it possesses the data of the data subject. Data that, therefore, would have come into the possession of XX through unspecified means.

In light of the above (with reference to paragraphs 4.3.1 and 4.3.2), as the alleged consents granted by the data subject cannot be considered adequately documented, it is believed that the communications complained of in the complaint were sent in the absence of the necessary consent and without the Company verifying its acquisition. Thus, the violation of Article 6, paragraph 1, letter a) of the Regulation, as well as Article 130, paragraphs 1 and 2, of the Code, is confirmed.

5. Conclusions

Based on the above, it is deemed established that Altroconsumo is responsible for violating the following provisions: Articles 5, paragraph 1, letter a) and paragraph 2; 6, paragraph 1 letter a); 12, paragraphs 1 and 2; 21, paragraph 2; 24 and 25; Article 130, paragraphs 1 and 2, of the Code.

Having established the unlawfulness of the above-described conduct of the Company, it is necessary to:

- pursuant to Article 58, paragraph 2, letter f) of the Regulation, prohibit any further processing for promotional and commercial purposes carried out, on behalf of Altroconsumo, by third parties through an affiliate network without verifying that the personal data used for advertising communications are supported by free, specific, and informed consent from the data subjects (Articles 6 and 7 of the Regulation and 130 of the Code);
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, order the Company, should it intend to carry out promotional activities in the future through an affiliate network, to adopt appropriate procedures aimed at constantly verifying, including through adequate sample checks, that personal data are processed in full compliance with the relevant provisions (prior acquisition of free, specific, unequivocal, documented, and informed consent from the data subjects for sending commercial communications) (Articles 6, 7, and 14 of the Regulation as well as 130 of the Code);
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, order Altroconsumo to adopt appropriate technical and organizational measures to facilitate the exercise of rights provided for by data protection legislation and to satisfy, without unjustified delay, the related requests, including the right to object that can be raised "at any time" by the data subject (Articles 15, 17, and 21, paragraph 2, of the Regulation);

Finally, with regard to the treatments already carried out and considering the violations established above, it is believed that the conditions exist for the application of an administrative monetary sanction pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation.

6. Order for the application of the administrative monetary sanction

The violations indicated above necessitate the adoption of an order for injunction, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Altroconsumo of the administrative monetary sanction provided for by Article 83, paragraphs 3 and 5, of the Regulation (payment of an amount up to €20,000,000.00 or, for companies, up to 4% of the annual global turnover of the previous financial year, if higher).

For the determination of the amount of the sanction, which must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1), it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation.

As aggravating circumstances, it is deemed appropriate to consider:

1) the severity of the violations detected related to "systemic" conduct as they are rooted in corporate procedures, particularly with reference to the absence of adequate sample checks in...

Order regarding consents for communication to third parties for marketing purposes (controls carried out only after the intervention of the Authority), as well as the inadequate management of requests from data subjects (art. 83, par. 2, lett. a of the Regulation);

1) The duration of the violation since the sending of unsolicited emails, in the absence of a legal basis of consent, has continued for several years, specifically, after five years from the first communication and four years after the complainant's opposition, who, in order to see such conduct cease, deemed it necessary to turn to the Authority (art. 83, par. 2, lett. a of the Regulation);

2) The negligent nature of the conduct since the presence of the Company in the market for many years should have allowed it to acquire a sufficient background of experience and competence to make more compliant choices with the regulatory framework, also in light of the sanctioning measure of which Altroconsumo was a recipient in 2022 (provv. n. 429 of December 15, 2022, in www.gpdp.it, doc. web n. 9852290) (art. 83, par. 2, lett. b of the Regulation);

3) The overall assessment of Altroconsumo's economic capacity, taking into account the latest available corporate turnover (as resulting from the ordinary financial statements for the year 2023) (art. 83, par. 2, lett. k of the Regulation).

As mitigating factors, it is deemed necessary to consider:

1) The categories of personal data subject to violation, which only concerned personal identification data and the email addresses of the data subjects (art. 83, par. 2, lett. g of the Regulation);

2) The cooperation with this Supervisory Authority during the preliminary investigation and the subsequent proceedings (art. 83, par. 2, lett. f of the Regulation);

3) The circumstance that, in the previous sanctioning measure adopted by the Authority (provv. n. 429 of December 15, 2022), Altroconsumo settled the dispute with a reduced payment, which determines, pursuant to art. 8-bis, comma 5, of law n. 681/1989, the non-applicability of the aggravating circumstance referred to in art. 58, par. 2, lett. e of the Regulation.

Based on the complex of the elements mentioned above, in application of the aforementioned principles of effectiveness, proportionality, and deterrence referred to in art. 83, par. 1, of the Regulation, taking into account the necessary balancing between the rights of data subjects and the freedom of enterprise, also in order to limit the economic impact of the sanction on the organizational, functional, and employment needs of the Company, it is deemed that an administrative sanction of a payment of sixty thousand euros (€60,000.00), equal to approximately 0.3% of the maximum administrative fine, should be applied to Altroconsumo.

In this case, it is also deemed that the accessory sanction of publication on the website of the Authority of this provision, as provided for by art. 166, comma 7, of the Code and by art. 16 of the Regulation of the Authority n. 1/2019, should be applied.

In implementation of the principles referred to in art. 83 of the Regulation, the imposition of this accessory sanction appears proportionate due to the severity and particular disvalue of the conduct subject to censure, with specific reference to the lack of a verification procedure for the lists used by third parties for the promotional activity of Altroconsumo's products and services. In addition to this, the failure to adopt subsequent measures aimed at ensuring that all phases of processing comply with the regulations (from data collection to the realization of promotional campaigns), together with the inadequate management of requests for the exercise of the rights of data subjects, denote a culpable and persistent insensitivity to the issue of personal data protection.

****It is reminded that pursuant to art. 170 of the Code, anyone who, being obliged, does not comply with this prohibition on processing is punished with imprisonment from three months to two years and that, in case of non-compliance with the same provision, the sanction referred to in art. 83, par. 5, lett. e) of the Regulation is also applied administratively.****

****Finally, the prerequisites referred to in art. 17 of Regulation n. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Authority, for the annotation of the violations detected herein in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation, are present.****

****ALL OF THE ABOVE CONSIDERED, THE AUTHORITY****

a) pursuant to art. 57, par. 1, lett. f) of the Regulation, declares unlawful, in the terms set out in the reasoning, the processing carried out by the company Altroconsumo Edizioni S.r.l., based in Milan, Via Valassina 22, VAT n. 12581280158;

b) pursuant to art. 58, par. 2, lett. f) of the Regulation, prohibits any further processing for promotional and commercial purposes carried out, on behalf of Altroconsumo, by third parties through affiliate networks without verifying that the personal data used for advertising communications are supported by free, specific, and informed consent of the data subjects (arts. 6 and 7 of the Regulation and 130 of the Code);

c) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders Altroconsumo Edizioni S.r.l., if it intends to carry out promotional activities in the future through affiliate networks, to adopt appropriate procedures aimed at constantly verifying, including through adequate random checks, that personal data are processed in full compliance with the provisions regarding.

(preventive acquisition of free, specific, unequivocal, documented, as well as informed consent from the interested parties for the sending of commercial communications) (Articles 6, 7, and 14 of the Regulation as well as Article 130 of the Code);

d) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders Altroconsumo to adopt appropriate technical and organizational measures to facilitate the exercise of the rights provided for by the legislation on personal data protection and to satisfy, without unjustified delay, the related requests, including the right to object which may be raised "at any time" by the interested party (Articles 15, 17, and 21, paragraph 2, of the Regulation);

e) pursuant to Article 157 of the Code, orders the Company to communicate to the Authority, within 30 days from the notification of this provision, the initiatives undertaken in order to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation, Altroconsumo Edizioni S.r.l., represented by its legal representative, to pay the sum of €60,000.00 (sixty thousand/00), as an administrative pecuniary sanction for the violations indicated in the reasoning; it is stated that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

ORDERS

the aforementioned Company, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €60,000.00 (sixty thousand/00), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

DISPOSES

a) pursuant to Article 166, paragraph 7, of the Code, the full publication of this injunction order on the website of the Guarantor;

b) pursuant to Article 17 of the Guarantor's Regulation No. 1/2019, the annotation in the internal register of the Authority, provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted;

c) the publication of this provision pursuant to Articles 154-bis of the Code and 37 of the aforementioned Regulation No. 1/2019.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the interested party, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, December 19, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE DEPUTY SECRETARY GENERAL

Filippi

1) Reference is made to the provisions, applicable also to the private sector, contained in the Digital Administration Code (CAD - Legislative Decree 82/2005) as integrated by the "Guidelines on the formation, management, and preservation of electronic documents" adopted by Agid in May 2021 (https://www.agid.gov.it/sites/agid/files/2024-05/linee_guida_sul_documento_informatico.pdf) according to which "the characteristics of immutability and integrity are determined by one or more of the following operations," including the "registration in the system logs of the outcome of the operation of forming the electronic document, including the application of measures for the protection of the integrity of databases and for the production and preservation of system logs; [as well as] the production of a static extraction of the data and the transfer of the same to the preservation system" (see point 2.1.1. of the aforementioned Guidelines – "Formation of the electronic document").